



Peer-to-Peer Lending — Made Personal, Made Safe

TERMS OF SERVICE

LEGAL DOCUMENT

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Terms of Service

Lend Love™ Effective Date: **[DATE TO BE INSERTED]** Last Updated: **[DATE TO BE INSERTED]**

Important Notices Before You Use the Service

ARBITRATION NOTICE. *These Terms contain a mandatory arbitration clause and class-action waiver (Section 20). By using the Service, you agree to resolve disputes through individual arbitration rather than in court, and you waive your right to participate in class actions.*

NOT A LENDER. *Lend Love is a technology platform that facilitates peer-to-peer loan transactions between consenting users. Lend Love is **not** a bank, lender, or borrower. We are not a party to any loan.*

18+ ONLY. *You must be at least 18 years of age to use the Service.*

1. Acceptance of Terms

These Terms of Service ("Terms") form a binding agreement between you ("you" or "User") and Lend Love, Inc. ("Lend Love," "we," "us," or "our") governing your access to and use of our mobile applications, websites, and related services (collectively, the "Service").

By creating an account, accessing, or using the Service, you confirm that you have read, understood, and agree to be bound by these Terms and our [Privacy Policy](#). If you do not agree, do not use the Service.

2. Eligibility

To use the Service, you must:

- Be at least **18 years of age** (or the age of majority in your jurisdiction, whichever is greater)
- Have the legal capacity to enter into binding contracts
- Reside in a jurisdiction where the Service is available
- **Not** be prohibited from using the Service under applicable law, including United States sanctions, anti-money-laundering, or counter-terrorism financing requirements
- Provide accurate, current, and complete information about yourself

We may, in our sole discretion, refuse to provide the Service to any person or entity at any time.

3. Account Registration and Security

3.1 Account Creation

You must register an account to use most features of the Service. When you register, you agree to:

- Provide accurate, complete, and current information

- Maintain the security of your password and accept all risks of unauthorized access
- Notify us immediately at support@lendlovellc.com if you suspect unauthorized use of your account
- Not share your account credentials with anyone

You are responsible for all activity that occurs under your account, whether or not you authorized it.

3.2 Identity Verification (KYC) and AML

To comply with US federal law — including the Bank Secrecy Act, USA PATRIOT Act, and Office of Foreign Assets Control ("OFAC") sanctions — and with state lending laws, we (through our third-party verification provider) collect and verify information about you, including:

- Your name, date of birth, and physical address
- A government-issued identification document
- A real-time selfie matched against the ID
- Proof of address (such as a utility bill or bank statement)

We may **decline, suspend, or terminate** your account if:

- We are unable to verify your identity
- You appear on a sanctioned-persons list
- Your activity is consistent with money laundering, fraud, or other prohibited conduct
- You provide false or misleading information

4. The Service: Peer-to-Peer Lending Platform

4.1 What We Do

Lend Love operates a technology platform that:

- Allows users to **post offers** to lend money or physical items
- Allows users to **post requests** to borrow money or physical items
- Enables users to **communicate** with each other via in-app chat
- Generates **loan agreements** in a Truth-in-Lending Act ("TILA") compliant format
- Facilitates **electronic signatures** of those agreements
- Routes **payments** between users through our third-party payment processor

4.2 What We Are NOT

Lend Love is not a bank, lender, broker, or party to any loan. We do not extend credit, lend funds, or guarantee repayment of any loan. All loans are between users acting in their personal capacities. Lend Love:

- Does not control whether a loan is funded
- Does not control whether a loan is repaid
- Does not guarantee any user's identity, creditworthiness, or behavior
- Is not responsible for any loss arising from a transaction between users
- Does not provide legal, tax, or financial advice

You assume all risk associated with loans you enter into through the Service.

4.3 Item Loans

Lend Love also supports loans of physical items between users. The lending and borrowing user are solely responsible for the condition, delivery, and return of any item. Lend Love is not responsible for any damage, loss, or theft.

5. Loan Terms and Disclosures

5.1 Truth-in-Lending Disclosures

Every money loan agreement generated through the Service includes the following TILA-mandated disclosures:

- **Annual Percentage Rate ("APR")** — the cost of credit as a yearly rate
- **Finance Charge** — the total dollar cost of credit
- **Amount Financed** — the amount of credit provided
- **Total of Payments** — the amount you will pay over the life of the loan
- **Payment Schedule** — when each payment is due
- **Late Payment Fees** — the cost of late payments
- **Prepayment Terms** — whether you may pay early without penalty

Review these disclosures carefully before signing any loan agreement.

5.2 APR Cap and Term Floor

To comply with consumer-protection requirements and the Google Play Personal Loan Policy, money loans on the Service:

- May not exceed an **annual percentage rate of 36%** (or any lower applicable state cap)
- Must have a **repayment term of at least 60 days**
- Must comply with all applicable state lending and consumer-protection laws

We reserve the right to reject any proposed loan that exceeds these limits or otherwise violates applicable law.

5.3 Electronic Signatures

By electronically signing a loan agreement through the Service, you agree:

- Your electronic signature has the same legal effect as a handwritten signature under the U.S. Electronic Signatures in Global and National Commerce Act ("**E-SIGN**") and the Uniform Electronic Transactions Act ("**UETA**")
- You have the technical capability to access and retain a copy of the agreement
- You agree to receive related notices and disclosures electronically

5.4 You Are Bound by Your Agreement

A signed loan agreement is a **legally binding contract between the lender and the borrower**. Lend Love is not a party to that contract. Disputes arising from a loan agreement must be resolved between the parties (subject to Section 19 below).

6. Payments

6.1 Payment Processor

All money transfers occur through our third-party payment processor, **Paykings** (using the **NMI Gateway**). Use of the payment service is subject to that provider's terms.

6.2 Disbursements and Repayments

- **Disbursements** are initiated when both parties sign the agreement and the lender authorizes funding
- **Repayments** may be scheduled automatically through ACH debit or made via card or bank transfer
- **Failed payments** may result in late fees, additional ACH-failure fees from the processor, and damage to platform standing

6.3 Platform Fee

Lend Love charges a **platform fee** (currently 1.5% of the disbursed amount, subject to change with notice). The fee is deducted automatically and is non-refundable except as required by law.

6.4 Refunds and Chargebacks

Initiating a chargeback for a legitimate loan repayment may result in suspension or termination of your account. We will cooperate fully with payment processors and law-enforcement authorities to investigate fraudulent chargebacks.

6.5 Tax Responsibility

You are solely responsible for any tax consequences of loans you enter into through the Service, including reporting interest income. We may issue tax forms (such as IRS Form 1099) as required by law.

7. User Conduct

You agree **not** to use the Service to:

- Violate any law, regulation, or third-party right
- Submit false, inaccurate, or misleading information
- Engage in money laundering, terrorist financing, or sanctions evasion
- Solicit or transact loans for **illegal activities, gambling, firearms, controlled substances, or any other prohibited purpose**
- Discriminate against any user based on race, religion, gender, national origin, disability, or any protected category
- Harass, threaten, defraud, or harm any other user
- Impersonate any person or entity
- Bypass the in-platform payment system by paying users off-platform
- Use bots, scrapers, or automated tools to access the Service
- Interfere with the security or availability of the Service
- Attempt to reverse engineer, decompile, or extract source code from any part of the Service

- Use the Service to compete with us or build a competing product
- Upload any virus, malware, or harmful code
- Use the Service for any non-consumer (commercial) lending without our prior written consent

Violation of these prohibitions may result in immediate suspension or termination, forfeiture of pending transactions, and referral to law-enforcement authorities.

8. User-Generated Content

8.1 Your Content

You retain ownership of content you submit to the Service (profiles, loan listings, chat messages, signatures, etc.). By submitting content, you grant Lend Love a non-exclusive, worldwide, royalty-free license to use, store, display, reproduce, modify, and distribute that content **solely for the purpose of operating and improving the Service**.

8.2 Your Representations

You represent and warrant that you have all rights necessary to submit your content and that your content does not violate any law or third-party right.

8.3 Moderation

We may, but are not obligated to, monitor, review, or remove any user content. We may remove content that violates these Terms, our community guidelines, or applicable law. We are not responsible for content submitted by other users.

8.4 Report Abuse

You may report inappropriate content or conduct via the in-app **Report** button or by emailing support@lendlovellc.com. We investigate reports promptly and may take action including warning, suspension, or termination of accounts.

8.5 Blocking Other Users

You may block another user from contacting you through the Service. Blocked users will be hidden from you and unable to message you.

9. Intellectual Property

All content provided by Lend Love — including software, designs, logos, trademarks, text, graphics, and user interfaces — is owned by or licensed to Lend Love and is protected by copyright, trademark, and other intellectual-property laws. "Lend Love" and the Lend Love logo are trademarks of Lend Love, Inc.

You may not copy, modify, distribute, sell, or lease any part of the Service, nor reverse engineer or attempt to extract source code, except as expressly permitted by law.

10. Third-Party Services

The Service integrates with third-party providers, including:

- **ID Analyzer** for identity verification
- **Paykings + NMI Gateway** for payment processing
- **Stream Chat** for messaging (in production)
- **Firebase (Google)** for authentication, database, and notifications
- **SendGrid** for email
- **Twilio** for SMS

Your use of those services is subject to their own terms and privacy policies. We are not responsible for any third-party service.

11. Privacy

Our collection and use of personal information is governed by our [Privacy Policy](#), which is incorporated by reference into these Terms.

12. Account Suspension and Termination

12.1 By You

You may terminate your account at any time by following the instructions in **Profile** → **Account Settings** → **Delete Account** within the app or by visiting lendlovelc.com/delete-account.

12.2 By Us

We may suspend or terminate your account at any time, with or without notice, if we believe you have violated these Terms, posed a risk of harm to others or the platform, or for any other reason in our reasonable discretion.

12.3 Effect of Termination

Termination does **not** discharge:

- Outstanding loan obligations between users
 - Accrued payment, fee, or repayment obligations
 - Sections of these Terms intended to survive termination, including Sections 4.2 (Limitation of Service), 9 (Intellectual Property), 13–16 (Disclaimers, Limitation of Liability, Indemnification), and 20 (Arbitration)
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13. Disclaimers

THE SERVICE IS PROVIDED "**AS IS**" AND "**AS AVAILABLE**" WITHOUT ANY WARRANTY OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

WITHOUT LIMITING THE FOREGOING, LEND LOVE DOES NOT WARRANT:

- That the Service will be uninterrupted, secure, or error-free
- That any loan posted on the platform will be funded, repaid, or be a good investment
- That other users are who they claim to be, despite our KYC efforts
- That information posted by users is accurate
- That defects in the Service will be corrected

LEND LOVE IS NOT RESPONSIBLE FOR THE CONDUCT OF ANY USER. WE DO NOT GUARANTEE THE OUTCOME OF ANY LOAN, ITEM EXCHANGE, OR INTERACTION BETWEEN USERS.

Some jurisdictions do not allow exclusion of certain warranties, so portions of this section may not apply to you.

14. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW:

- **LEND LOVE, ITS OFFICERS, DIRECTORS, EMPLOYEES, AGENTS, AND SUPPLIERS WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR EXEMPLARY DAMAGES**, including damages for loss of profits, data, business opportunities, or goodwill, arising out of or in connection with the Service, **EVEN IF WE HAVE BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.**
- **OUR TOTAL LIABILITY** to you for all claims arising from or related to the Service will not exceed the greater of (a) **the total fees you paid to Lend Love in the 12 months preceding the claim**, or (b) **one hundred US dollars (\$100).**

These limitations apply regardless of the legal theory and apply even if any limited remedy fails of its essential purpose.

Some jurisdictions do not allow these limitations, so portions of this section may not apply to you.

15. Indemnification

You agree to **indemnify, defend, and hold harmless** Lend Love and its officers, directors, employees, agents, and suppliers from any claim, demand, loss, liability, expense, or damage (including reasonable attorneys' fees) arising out of or relating to:

- Your use of the Service
 - Your violation of these Terms or any law
 - Your violation of any third-party right
 - Any content you submit
 - Any loan or transaction between you and another user
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16. Governing Law

These Terms are governed by the laws of the **State of New York**, without regard to its conflict-of-laws principles. The United Nations Convention on Contracts for the International Sale of Goods does not apply.

17. Disputes Between Users

Loan disputes (e.g., non-payment, item damage, fraud) are between the users involved. Lend Love does not arbitrate such disputes, but we may provide tools, transcripts of in-app communication, and other relevant information upon a valid legal request.

We encourage users to:

1. Communicate directly through the in-app chat
 2. Refer to the signed loan agreement for terms
 3. Consider mediation services in your jurisdiction
 4. Consult an attorney for serious disputes
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18. Changes to These Terms

We may modify these Terms at any time. We will:

- Update the "Last Updated" date at the top of this page
- Provide notice through the app or by email if changes are material
- Where required by law, obtain your consent or give you the opportunity to delete your account

Your continued use of the Service after the effective date of an updated Terms means you accept the changes.

19. Notice and Right to Cure

Before initiating a dispute, you must first send written notice to legal@lendlovellc.com describing the claim. We will have **60 days** from receipt of the notice to attempt to resolve the matter informally.

20. Mandatory Arbitration and Class Action Waiver

PLEASE READ CAREFULLY. THIS SECTION AFFECTS YOUR LEGAL RIGHTS.

20.1 Agreement to Arbitrate

Any dispute, claim, or controversy arising out of or relating to these Terms or the Service (a "**Dispute**") that cannot be resolved informally under Section 19 must be resolved through **binding individual arbitration** administered by the American Arbitration Association ("**AAA**") under its Consumer Arbitration Rules, **not in court**.

20.2 Class Action Waiver

YOU AND LEND LOVE EACH WAIVE THE RIGHT TO PARTICIPATE IN A CLASS, COLLECTIVE, OR REPRESENTATIVE ACTION. Disputes will be resolved on an individual basis only.

20.3 Exceptions

You may pursue claims in **small-claims court** if eligible. Either party may seek **injunctive relief** in court to protect intellectual-property rights.

20.4 Right to Opt Out

You may opt out of the arbitration agreement and class-action waiver by emailing legal@lendlovellc.com within **30 days of first accepting these Terms**. You must include your full name, account email, and a clear statement that you wish to opt out.

20.5 Location and Costs

Arbitration will be conducted in New York County, New York, or by remote means if the AAA Consumer Arbitration Rules so allow. The AAA Consumer Arbitration Rules govern the allocation of fees.

21. Miscellaneous

- **Entire Agreement.** These Terms (together with the Privacy Policy) constitute the entire agreement between you and Lend Love.
 - **Severability.** If any provision is found unenforceable, the remaining provisions remain in full effect.
 - **No Waiver.** Our failure to enforce a provision is not a waiver of our right to do so later.
 - **Assignment.** You may not assign these Terms without our prior written consent. We may assign these Terms freely.
 - **Force Majeure.** We are not liable for failures caused by events beyond our reasonable control.
 - **Headings.** Section headings are for convenience only and do not affect interpretation.
 - **English Language.** These Terms are in English; any translation is for convenience only.
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22. Contact

If you have questions about these Terms, contact us at:

Lend Love, Inc.

 **Legal:** legal@lendlovellc.com  **Support:** support@lendlovellc.com  **Web:** lendlovellc.com

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